

02:00 PM

25-CIV-02754 JOSE SALVADOR TINAJERO VS. ESTELA BELLO, ET AL.

LINE 4

JOSE SALVADOR TINAJERO
ESTELA BELLO

GREGORY C. CATTERMOLLE
GERALD T. LAU

DEFENDANTS: ESTELA BELLO AND OFELIA BELLO'S MOTION AND MOTION TO COMPEL RESPONSES TO DEFENDANTS' FIRST SET OF FORM INTERROGATORIES, REQUEST FOR PRODUCTION OF DOCUMENTS, REQUEST NOS. 1-28, AND REQUESTS FOR ADMISSION, REQUEST NOS. 1-14; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

The motion is moot. The declaration of Gregory Cattermole establishes that discovery responses have been served. Defendants' request for sanctions is DENIED. While normally the Court would issue sanctions (although a substantially lower amount than sought), the Declaration of Greg Cattermole supports the Court's conclusion that issuance of sanctions would be unjust under the specific circumstances of this motion.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court and will be reflected in the minutes. No formal order will follow.

02:00 PM

25-CIV-07999

BRIAN TAUSSIG, ET AL. VS. GEORGE H. OGATA, ET AL.

LINE 5

BRIAN TAUSSIG
GEORGE H. OGATA

JAIME C. UZIEL

ORDER TO SHOW CAUSE HEARING FOR DEFENDANT TO SHOW IT HAS AN ATTORNEY REPRESENTING IT OR WHY ITS ANSWER SHOULD NOT BE STRICKEN AND DEFAULT ENTERED IN FAVOR OF PLAINTIFFS AND AGAINST DEFENDANT AND DEFENDANT'S PRIOR MOTION TO EXPUNGE LIS PENDENS.

TENTATIVE RULING:

The June 30, 2026 Order to Show Cause is DISCHARGED and Defendant's prior fully briefed motion to expunge the Lis Pendens previously set for June 22, 2026 and taken off calendar is reset for October 5, 2026 and is DENIED.

On June 30, 2026, the Court ordered Defendant Roberta Shong to show that she has retained an attorney to represent her in her capacity as trustee of the Ogata Family Trust ("Trust") in this matter or to show cause why her responsive pleading should not be stricken and her default entered. Shong, as well as Plaintiffs Brian Traussig and Meghan Ann Joyce, have filed responses.

In general, "a trust is not a person but rather a fiduciary relationship with respect to property." (*Moeller v. Superior Court* (1997) 16 Cal.4th 1124, 1132, fn. 3.) "For that reason, the trustee, rather than the trust, is the real party in interest in litigation involving trust property." (*Id.*)

And, because a trust is not a legal entity, a trustee who appears in court in her capacity as trustee does not represent the trust's interests but either the interests of the beneficiaries or the settlor, depending on whether the trust is revocable. (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 548.) By filing or presenting argument in propria persona on behalf of those interests, therefore, a trustee may be engaged in the unauthorized practice of law, which courts are empowered to prevent. (*Id.* at 549.)

However, a "sole settlor, trustee, and beneficiary" may represent his own interests at trial without an attorney (*Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1525), and "[a]lthough generally nonattorney trustees cannot appear in propria persona because they are representing the interests of others, a trustee who is also the only settlor and beneficiary 'does not appear in court proceedings concerning the trust in a representative capacity.' [Citation.] Instead, such a trustee 'represents his or her own interests, not someone else's,' and therefore has the right to self-representation. [Citation.]" (*Boshernitsan v. Bach* (2021) 61 Cal.App.5th 883, 894.)

The clear import of these holdings is that the proper analysis of whether a pro se litigant may appear in her capacity as trustee of a trust must include a determination of whose interests the litigant is representing: "*Ziegler* articulates a general rule that nonattorneys who purport to conduct litigation on behalf of others violate the prohibition against the unauthorized practice of law." (*Aulisio*, 230 Cal.App.4th at 1524.) If the litigant represents only his or her own, he or she may proceed without an attorney.
